

SUPREME COURT OF THE STATE OF NEW
YORK COUNTY OF BRONX

-----X
STEFVON ELEY,

Plaintiff,

---against---

THE CITY OF NEW YORK, P.O.
CHRISTOPHER "DOE" (as noted in the
attached photograph), MICHAEL HEINZ and
P.O. JOHN DOES #1-10

Defendants.

-----X

Index No.:

Date Purchased:

SUMMONS

Plaintiff
designates Bronx
County as place
of trial

Basis of Venue:
Plaintiff's
Residence

Plaintiff resides
at:

County of Bronx

To the above named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, NY
November 3, 2020

RAWLINS LAW, PLLC

/s/ _____

Gary Rawlins, Esq.
Attorney for Plaintiff

STEFVON ELEY

777 Westchester Ave, Suite 101

White Plains, NY 10604

Tel: (212) 926-0050

Fax: (347) 332-1592

TO:

CITY OF NEW YORK
Zachary Carter, Esq.
Corporation Counsel
New York City Law Department
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW
YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

-----X
STEFVON ELEY

**VERIFIED
COMPLAINT**

Plaintiff,

against

THE CITY OF NEW YORK, P.O.
CHRISTOPHER "DOE" (as noted in the
attached photograph) Michael Heinz, and P.O.
JOHN DOES #1-10

Defendants.

-----X

Plaintiff, by his attorney, **GARY N. RAWLINS**, as and for his Summons and
Verified Complaint, respectfully alleges, upon information and belief that:

1. The Plaintiff, **STEFVON ELEY**, at all times herein mentioned was and still is a
resident of the County of Bronx and the State of New York.
2. At all times mentioned herein, Defendants **THE CITY OF NEW YORK, P.O.
CHRISTOPHER "DOE" and Michael Heinz and P.O. JOHN DOES #1-10**, and
others not presently known to Plaintiff were and still are residents of the County of Bronx
and the State of New York.
3. At all times herein mentioned, Defendant **THE CITY OF NEW YORK
("NYC")**, was and still is a municipal corporation, created, organized and existing under
and by virtue of the laws of the State of New York.
4. Prior to the commencement of this action, a notice of claim in writing was served
on behalf of plaintiff upon **THE CITY OF NEW YORK** in accordance with Section
50-e of the General Municipal Law.

5. Within ninety days of (90), a notice of claim in writing was served on behalf of Plaintiff **STEFVON ELEY** upon **THE CITY OF NEW YORK**, in accordance with Section 50-e of the General Municipal Law.

6. Prior to the commencement of this action, notice of the intention of Plaintiff **STEFVON ELEY** to commence an action, unless the claim presented was adjusted within the prescribed time as set forth by the New York City Charter to adjust such claims, was served on behalf of Plaintiff upon Although more than thirty (30) days have elapsed since service of such notice of claim, Defendants neglected and have refused to pay said claim or adjust same.

7. A hearing pursuant to General Municipal Law 50-h was held on February 15, 2018.

8. This action is commenced within three years (subject to applicable tolls pursuant to executive orders related to Covid) of the date of incident.

9. At all relevant times, Defendants were employees of Defendants **THE CITY OF NEW YORK** and were acting for, upon and in the course of and in the furtherance of the business of their employers and within the scope of their employment.

10. The individual Defendants **THE CITY OF NEW YORK and defendants** were acting pursuant to the authority conferred upon them by defendant police department and defendant municipality.

11. At all times herein mentioned, Defendants **THE CITY OF NEW YORK, and defendants** stood in such a relationship with each other in providing law enforcement services as to make each liable for the acts and omissions of the others.

12. Defendants **THE CITY OF NEW YORK** are vicariously liable for the acts of Defendants **P.O. CHRISTOPHER “DOE”, Michael Heinz and P.O. JOHN DOES #1-10.**

13. Defendants battered and falsely arrested plaintiff in violation of his Constitutional Rights pursuant to 42 U.S.C. §1983

14. By reason of the foregoing, Plaintiff **STEFVON ELEY** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR THE FIRST CAUSE OF ACTION FOR FALSE ARREST AS
AGAINST ALL DEFENDANTS

15. Plaintiff **STEFVON ELEY** repeats and realleges each and every allegation contained in paragraphs 1 through 14 with full force and effect as if each were more fully set forth herein.

16. Plaintiff **STEFVON ELEY** sues all Defendants in their individual capacities.

17. On September 23 ,2017, Plaintiff **STEFVON ELEY** was wrongfully, unlawfully and unjustifiably arrested, detained and deprived of his liberty against his will, beaten and was imprisoned by defendants, their officers, agents, servants, employees, agencies and/or departments and/or at the instigation of those departments.

18. The wrongful, unjustifiable and unlawful apprehension, arrest, detention, use of excessive force and imprisonment were all carried out without a warrant.

19. At all relevant times, defendants beat plaintiff and acted forcibly in apprehending, arresting and imprisoning Plaintiff **STEFVON ELEY**.

20. On September 23, 2017, at approximately 4:30pm, Plaintiff **STEFVON ELEY** was at or about Lafayette Park, Bronx, NY walking across the field when an off-duty NYPD officer yelled at Plaintiff to “Get the f*** off the field.” Said officer and the other off-duty officers, including Christopher Doe, from Housing PSA 8 assaulted Plaintiff with baseballs and baseball bats while also kicking and punching him. The NYPD officers then called Housing PSA 8 NYPD officers for backup. Plaintiff **STEFVON ELEY** was arrested and brought to Housing PSA 8 where he remained until approximately 2:00pm on Sunday, September 24, 2017. Plaintiff **STEFVON ELEY** was released through the side door.

21. Defendants, their officers, agents, servant and/or employees were responsible for Plaintiff **STEFVON ELEY** arrest, detention and imprisonment during this period of time.

22. Throughout Plaintiff **STEFVON ELEY**’s imprisonment, Defendants, and their officers, agents, servants, and employees refused to give Plaintiff an opportunity to establish his innocence.

23. Defendants intended to and did in fact confine Plaintiff **STEFVON ELEY** and physically prevented him from leaving their custody and kept him under the supervision without access to his freedom, family and home.

24. Plaintiff **STEFVON ELEY** was conscious of his unlawful arrest, detention and imprisonment and did not consent to the confinement.

25. At all relevant times, the unlawful, wrongful and false arrest and imprisonment of Plaintiff **STEFVON ELEY** was without right or privilege, and unjustified and without probable or reasonable cause.

26. At no time did Defendants or their officers, agents, servants, employees, agencies and/or departments have a warrant or other legal process for the arrest, detention or imprisonment of Plaintiff **STEFVON ELEY**.

27. On or about the time of Plaintiff **STEFVON ELEY** unlawful arrest, criminal charges were brought against him and those same charges were later dismissed.

28. At all relevant times, the false, unlawful, and improper arrest and imprisonment of Plaintiff **STEFVON ELEY** was forcible and against his will.

29. All of the foregoing occurred without fault or provocation on the part of Plaintiff **STEFVON ELEY**.

30. As consequences of Defendants' wrongful actions, negligent behavior, and violation of New York State and common laws, Plaintiff **STEFVON ELEY**:

- a) was incarcerated and suffered in incarceration;
- b) was subjected to great fear, terror, personal humiliation, degradation, ridicule and disgrace;
- c) was subjected to great physical, mental, and emotional distress, suffering and harm;
- d) was discredited in the minds of many members of the community, having his personal reputation was deprived of his freedom;
- e) and character injured;

- f) was prevented from attending to his necessary affairs in business during the period of his detention;
- g) was permanently impaired as to his earning ability;
- h) and continues to suffer pain and mental and emotional distress as a result of the aforesaid unlawful conduct of Defendants, their agents, employees, and servants.

31. Defendants acted with a knowing, willful, wanton, grossly reckless, unlawful, unreasonable, unconscionable and flagrant disregard of Plaintiff's rights, privileges, welfare and well-being, and were guilty of egregious and gross misconduct toward him.

32. By reason of the foregoing, Plaintiff **STEFVON ELEY** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A SECOND CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFF'S 42 U.S.C. §1983 RIGHT TO BE FREE FROM EXCESSIVE
FORCE AND BATTERY AS AGAINST ALL DEFENDANTS**

32. Plaintiff **STEFVON ELEY** repeats and re-alleges each and every allegation contained in paragraphs 1 through with full force and effect as if each were more fully set forth herein.

33. On September 23, 2017 at approximately 4:30pm, Plaintiff **STEFVON ELEY** was at or about Lafayette Park, Bronx, NY walking across the field when an off-duty NYPD officer yelled at Plaintiff to "Get the f*** off the field." Said officer and the other off-duty officers from Housing PSA 8, including Christopher Doe, assaulted and battered Plaintiff **STEFVON ELEY** with baseballs while also kicking and punching

him amounting to the use of excessive force. The NYPD officers then called Housing PSA 8 NYPD officers for backup. Plaintiff **STEFVON ELEY** was arrested and brought to Housing PSA 8 where he remained until approximately 2:00pm on Sunday, September 24, 2017. Plaintiff was released through the side door.

33. Plaintiff **STEFVON ELEY** was assaulted and battered. The unlawful detention and arrest arose from the taking of Plaintiff into custody to be held to answer for a crime.

34. The aforementioned arrest and subsequent detention were without probable cause or any justification and were further based upon Defendants' false statements, falsified reports, falsified documents, falsified evidence and or perjured testimony.

35. By reason of Defendants' actions, Plaintiff **STEFVON ELEY** suffered personal injuries from the excessive force used against him, was deprived of his liberty and was otherwise greatly injured.

36. By reason of the foregoing, Plaintiff **STEFVON ELEY** sustained violations of his Constitutional rights and damages from the violations in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FAILURE TO INTERVENE
TO PREVENT THE VIOLATION OF PLAINTIFF'S CIVIL RIGHTS AS
AGAINST ALL DEFENDANTS**

37. Plaintiff **STEFVON ELEY** repeats and re-alleges each and every allegation contained in paragraphs 1 through 38 with full force and effect as if each were more fully set forth herein.

38. As a result of the above actions, Defendants **THE CITY OF NEW YORK** individually, and/or vicariously, by and through its agents, servants and /or employees, and **OFFICERS**, failed to intervene to prevent or end the unlawful conduct inflicted upon Plaintiff **STEFVON ELEY** by defendant **OFFICERS**.

39. As a result of the foregoing, Defendants **THE CITY OF NEW YORK**, individually and and/or vicariously by and through their agents servants, and/or employees, and, displayed a deliberate indifference to Plaintiff **STEFVON ELEY** rights to be free from unreasonable searches and seizures and excessive use of force.

40. As a result of the foregoing, Defendants **THE CITY OF NEW YORK** individually and/or vicariously by and through its agents servants, and/or employees, including, **P.O. CHRISTOPHER “DOE”, Michael Heinz and P.O. JOHN DOES #1-10** acted intentionally, willfully, maliciously, with reckless disregard for and deliberate indifference to Plaintiff’s rights and physical well being.

41. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFF’S RIGHT AGAINST UNREASONABLE SEARCH AND SEIZURE
UNDER THE 4TH AND 5TH AENDMENTS OF THE UNITED STATES CONSTITUTION AND
42 USC 1983**

42. Plaintiff **STEFVON ELEY** repeats and re-alleges each and every allegation contained in paragraphs 1 through 43 with full force and effect as if each were more fully set forth herein.

43. Defendants, and each of them in their individual and official capacities, had a duty under the New York State Constitution Article 1 Section 12 to prevent and cease the wrongful detainment, false arrest, assault, false imprisonment, malicious and false charging and prosecuting, and other wrongful acts that were committed against Plaintiff **STEFVON ELEY**.

44. In actively inflicting and failing to prevent the above-stated abuses incurred by Plaintiff **STEFVON ELEY** all of Defendants acted unreasonably, recklessly, and negligently in failing to exercise the slightest amount of due care to secure and protect the civil and constitutional rights of Plaintiff against detained custody, false arrest and arrest without other due process violations. The New York State Constitution guarantees said rights to Plaintiff.

45. The breach of duty under the New York State Constitution by the Defendants, **P.O. CHRISTOPHER “DOE” and P.O. JOHN DOES #1-10** was a direct and proximate cause of the aforementioned harm suffered by Plaintiff **STEFVON ELEY**.

46. By reason of the foregoing, Plaintiff **STEFVON ELEY** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A FIFTH 1983 CAUSE OF ACTION FOR FALSE ARREST AND
MALICIOUS PROSECUTION AS AGAINST ALL DEFENDANTS IN
VIOLATION OF PLAINTIFF’S UNITED STATES CONSTITUTIONAL RIGHTS**

47. Plaintiff **STEFVON ELEY** repeats and re-alleges each and every allegation contained in the above paragraphs with full force and effect as if each were more fully set forth herein.

48. Plaintiff **STEFVON ELEY** sues all Defendants in their capacities.

49. The wrongful, unjustifiable and unlawful apprehension, arrest, detention and imprisonment were all carried out without a warrant or probable cause.

50. At all relevant times, Defendants acted forcibly in apprehending, arresting and imprisoning Plaintiff **STEFVON ELEY**.

51. Prior to on or about September 23, 2017, the City of New York developed and maintained policies or customs exhibiting deliberate indifference to constitutional rights of persons in New York, which caused the violation of Mr. Eley's rights. It was the policy and/or custom of the City of New York to inadequately and improperly investigate citizen complaints of police misconduct, and acts of misconduct were instead tolerated by the City of New York. Specifically the city has made it a policy to stop and falsely arrest young minorities based on racial profiling as opposed to actual suspicion or legitimate probable cause. It was the policy and/or custom of the City of New York to inadequately supervise and train its police officers, including the defendant officers, thereby failing to adequately discourage further constitutional violations on the part of its police officers. The City did not require appropriate in-service training or re-training of officers who were known to have engaged in police misconduct. As a result of the above described policies and customs, police officers of the City of New York, including the defendant officers, believed that their actions would not be properly monitored by supervisory officers and that misconduct would

not be investigated or sanctioned, but would be tolerated. The above described policies and customs demonstrated a deliberate indifference on the part of the policymakers of the City of New York to the constitutional rights of persons within the City, and were the cause of the violations of the Plaintiff, **STEFVON ELEY'S** rights alleged herein. Respondent's knew or should have known that police officers were not being truthful and/or withholding exculpatory information. In this particular case, there have been at least two other complaints related to constant police harassment against the Eley family by NYPD Housing PSA 8 officers.

52. On or about September 23 ,2017, Defendants **P.O. CHRISTOPHER "DOE"** and **P.O. JOHN DOES #1-10** maliciously procured Plaintiff's arrest, imprisonment, and instigated malicious prosecution against Plaintiff.

53. Defendants played an active role in the prosecution, upon information and belief including but not limited to convincing each other and other police officers to participate in Plaintiff's prosecution; procuring false information to support their case; making false allegations; and otherwise acting with malice.

54. The charges against Plaintiff were not based upon probable cause, that is, the state of the facts known to the Defendants under the circumstances would not lead a reasonable person of ordinary caution and prudence to believe and/or entertain an honest suspicion that Plaintiff was guilty.

55. The Defendants had a duty to protect Plaintiff's constitutional rights and violated that duty.

56. The malicious prosecution caused serious injury to Plaintiff in the form of pain, suffering, shock, humiliation, embarrassment, physical injury, and deprivation of constitutional rights.

57. As a result of the malicious prosecution against him, Plaintiff has been damaged in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR NEGLIGENT HIRING,
TRAINING, RETENTION, AND SUPERVISION AGAINST DEFENDANTS NYC**

58. Plaintiff **STEFVON ELEY** repeats and realleges each and every allegation contained in paragraphs 1 through 61 with full force and effect as if each were more fully set forth herein.

59. That at the time of the aforementioned false arrest, false imprisonment, defamation, and violations of Plaintiff **STEFVON ELEY** civil rights, all of the above-captioned Defendants were acting in the course and general scope of their employment duties and official duties pursuant to the authority given them by Defendants **THE CITY OF NEW YORK**

60. Defendant **THE CITY OF NEW YORK** at all relevant times herein should have known or had reason or opportunity to know, that the agents, servants and/or employees named as defendants in this complaint were unfit for the employment for which they were hired, unfit for the official duties delegated to them and unfit for the law enforcement, investigatory, and prosecutorial responsibilities to which they were assigned.

61. That by hiring, retaining, employing, failing to supervise, failing to screen, failing to test, failing to evaluate, failing to monitor, failing to manage, failing to train and failing to investigate the aforementioned agents, servants and/or employees, Defendants **THE CITY OF NEW YORK**, negligently created and caused a situation where it was likely that said agents, servants and/or employees would, as a result of their work history, unfit character, malicious temperament, criminal propensity, inadequate training, inadequate management and inadequate supervision, unlawfully arrested, unlawfully imprisoned, unlawfully deprived innocent persons such as Plaintiff **STEFVON ELEY** of their Constitutional rights under the New York State Constitution, intentionally, wrongfully and unjustifiably arrested, detained and deprived such person of his liberty against his will, and imprisoned such person without sufficient reasons or probable cause appearing therefore.

62. Defendant **THE CITY OF NEW YORK** knew or should have known in the exercise of due and reasonable care that the aforementioned agents, servants and/or employees were malicious, vicious, potentially dangerous, and negligent and performing perjurious, criminal and illegal acts during the course of their employment duties.

63. Defendant **THE CITY OF NEW YORK** was negligent in the hiring, employment, training, retention, management, supervision, screening, testing, evaluating, monitoring, and investigating of the aforementioned agents, servants and/or employees.

64. That by reason of and in consequence of said negligence and lack of reasonable care on the part of defendants **THE CITY OF NEW YORK** and their agents, servants and/or employees, Plaintiff **STEFVON ELEY** suffered the afore-stated injuries.

65. Prior to September 23, 2017 the City of New York developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of persons in New York, which caused the violation of plaintiff's rights.

66. It was the policy and/or custom of the City of New York to inadequately and improperly investigate citizen complaints of police misconduct, and acts of misconduct were instead tolerated by the City of New York.

67. It was the policy and/or custom of the City or New York to inadequately supervise and train its police officers, including the defendant officers, thereby failing to adequately discourage further constitutional violations on the part of its police officers. The City did not require appropriate in-service training or re-training of officers who were known to have engaged in police misconduct.

68. As a result of the above described policies and customs, police officers of the City of New York, including the defendant officers, believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

69. The above described policies and customs demonstrated a deliberate indifference on the part of policymakers of the City of New York to the constitutional rights of persons within the City, and were the cause of the violations of Plaintiff's rights alleged herein. Wherefore, the Plaintiff requests that this Court:

- a. Award compensatory damages to Plaintiff against the Defendants, jointly and severally;
- b. Award costs of this action to the Plaintiff;

- c. Award reasonable attorney's fees and costs to the Plaintiff
 - d. Award such other and further relief, as this Court may deem appropriate.
70. By reason of the foregoing, Plaintiff **STEFVON ELEY** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR A SEVENTH CAUSE OF ACTION
FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
AGAINST ALL DEFENDANTS

71. Plaintiff **STEFVON ELEY** repeats and re-alleges each and every allegation contained in paragraphs 1 through 74 with full force and effect as if each were more fully set forth herein.
72. The Defendants, and each of them, acted outrageously for their above-stated roles in the wrongful stop, detainment, charging, failing to investigate, failure to adhere to law, rule and regulations known to them, failing to heed Plaintiff **STEFVON ELEY** protestations, manhandling, false arrest, prolonged captivity, intimidation and public humiliation of Plaintiff.
73. Said emotional harm was exacerbated by the persistence of Defendants, by maintaining the false claims and criminal charges against the Plaintiff **STEFVON ELEY** without any further investigation of the incident. Defendants knew or had reasons to know that the criminal charges against Plaintiff were false or without merit, yet that they detained and prosecuted Plaintiff with the intention of causing further harm and duress to the Plaintiff.

74. Defendants knew that their conduct would cause severe and extreme emotional harm to the Plaintiff **STEFVON ELEY** and injury to his good name and reputation.

75. Said harm did in fact occur in this case, in that Plaintiff **STEFVON ELEY** was debilitated to the point where he still suffers from episodes of anxiety, anger, loss of sleep, and other impingement of the emotional good health; to the extent that Plaintiff have had to seek support and counseling within the family.

76. By reason of the foregoing, Plaintiff **STEFVON ELEY** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR AN EIGHTH CAUSE OF ACTION FOR PUNITIVE DAMAGES
AGAINST ALL DEFENDANTS

77. Plaintiff **STEFVON ELEY** repeats and re-alleges each and every allegation contained in paragraphs 1 through 80 with full force and effect as if each were more fully set forth herein.

78. Defendants' acts were reckless, willful, wanton, malicious, oppressive, outrageous, outside the bounds of conduct tolerated in a civil society, without regard for Plaintiff **STEFVON ELEY** well being, and were based on a lack of concern and ill-will towards Plaintiff.

79. Plaintiff **STEFVON ELEY** therefore demands punitive damages in the amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, Plaintiff **STEFVON ELEY** demands judgment against the defendants as follows:

- a. On the First Cause of Action against all of the above-captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severely;
- b. On the Second Cause of Action against all of the above-captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severely;
- c. On the Third Cause of Action against all of the above-captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severely;
- d. On the Fourth Cause of Action against all of the above-captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severely;
- e. On the Fifth Cause of Action against **THE CITY OF NEW YORK** all of the above-captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severely;
- f. On the Sixth Cause of Action against all of the above-captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severely;
- g. On the Seventh Cause of Action against all of the above captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severely;

- h. On the Eighth Cause of Action against all of the above captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severely;
- i. Together with costs and disbursements of this action and;
- j. Such other and further relief as to the Court may seem just and proper.

Dated: White Plains, NY
March 9, 2018

RAWLINS LAW, PLLC

/s/ Gary Rawlins

Gary N. Rawlins, Esq.
Attorney for Plaintiff

STEFVON ELEY

777 Westchester Ave, Suite 101
White Plains, NY 10604
Tel: (212) 926-0050
Fax: (347) 332-1592

To:

CITY OF NEW YORK
Corporation Counsel
New York City Law Department
100 Church Street
New York, New York 10007

Officer Christopher "doe"



PLAINTIFF'S VERIFICATION

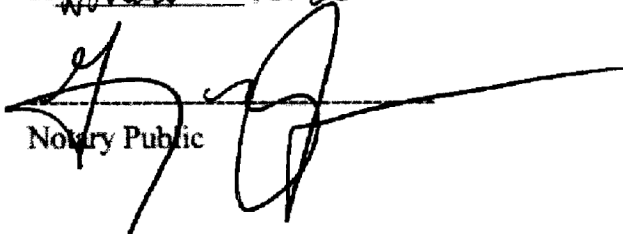
STATE OF NEW YORK, COUNTY OF KINGS, ss:

STEVEN BROY, being duly sworn, says:

I am a Plaintiff in the action herein: I have read the annexed

COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

DATED: New York, NY
11/3/2020X J. EbySworn to before me this 3 day
of November, 2020
Notary Public